

DOJ Complaint Resubmission Text (Report #625086-KKV)

****Complaint Number:**** 625086-KKV

****Name of Injured Person:**** Austin Tyler Underwood

****Date of Incident:**** May 21, 2023

****Time:**** Approximately 5:50 PM

****Location:**** Thompson Bridge Exit, near 31.060498, -81.449246, Glynn County, GA

****Narrative:****

I am filing this resubmission at the request of the Civil Rights Division to provide additional detail regarding my prior complaint (625086-KKV), which concerns an unlawful arrest and assault committed by an officer of the Georgia State Patrol on May 21, 2023.

I was driving home from work on Jekyll Island, traveling toward the mainland across Thompson Bridge, when a GSP SUV passed in the opposite direction, abruptly turned off the bridge, and began following me with its lights off. After a period of following me without activation of emergency lights, the officer activated them, passed me without initiating a stop, and then pulled over another vehicle ahead of me.

Believing I was not the subject of the stop, I cautiously passed the vehicles in the opposite lane, as traffic was clear. The same GSP vehicle then re-engaged its lights, pulled up beside me, and demanded I stop. I complied and asked for clarification. Instead of explaining, the officer ****used his vehicle to push mine into the grass off the side of the road****. He did this while driving into the oncoming lane himself.

I exited the vehicle slowly, hands visible, and was ordered to the rear of my car. Upon complying, I was ****slammed against the car****, then ****thrown to the ground****, resulting in a bruised back and serious aggravation of prior injuries. One of my shoes was knocked off into an ant pile. At no time did I resist. I repeatedly asked the reason for the stop and detention. No explanation was given until the officer eventually stated "obstruction."

A second officer, identified as **Officer Edwards**, arrived later. I informed him that I had been assaulted by the first officer. I also observed that the primary officer had **tape covering his body-worn camera**. Officer Edwards' body camera was active and blinking. I requested my father be called to recover my still-running vehicle; this was only allowed after persistent requests.

I was transported to **Glynn County Jail**. During transport, the driver—my assailant—**twice drove off the road** while distracted with paperwork. At the jail, I was questioned about whether I “had problems with law enforcement” and processed with minimal medical attention despite reporting a **double ear infection and back pain**.

I was then held in a cell with individuals accused of violent crimes, despite being charged only with nonviolent "obstruction." I was eventually bonded out hours later. Since the incident, I now walk with a **cane**, suffer from **chronic spinal pain**, and experience **PTSD**, including memory suppression. As a result, I cannot recall the **name of the primary officer** at this time, but I can confirm Officer Edwards was present.

My **parents, Michael and Freda Underwood**, can confirm parts of the incident including vehicle retrieval and the aftermath. They are both respected professionals in Glynn County (Sea Island Supervisor and Glyndale Elementary School teacher, respectively).

Relevant Civil Rights Violations:

- * Unlawful seizure under the Fourth Amendment
- * Excessive force by a state actor
- * Due process violations during pretrial detention
- * Retaliatory and degrading conduct
- * Obstruction of legal recourse due to delayed prosecution (which pushed me beyond the civil statute of limitations)

I request this matter be reviewed again in light of these details and ask that appropriate federal intervention be considered to ensure accountability and transparency.

****Respectfully submitted,****

Austin Tyler Underwood

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Brunswick, GA 31523

\[Phone/email optional]